

25VECV01834 25VECV01834

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-24

Motion: PLAINTIFF'S MOTION FOR ATTORNEY FEES

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Case Number: 25VECV01834 Hearing Date: September 24, 2026 Dept: W

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ANI GHALTAKHCHYAN, an individual,

Plaintiff,

vs.

GENERAL MOTORS LLC, a Delaware Limited Liability Company; CASA DE CADILLAC, a California Corporation; and
DOES 1 through 30, inclusive,

Defendants.

CASE NO: 25VECV01834

[TENTATIVE] ORDER RE:

PLAINTIFF'S MOTION FOR ATTORNEY FEES

Dept. W

8:30 a.m.

September 24, 2026

[TENTATIVE] ORDER: The Court GRANTS Plaintiff's Motion for Attorney Fees, in the modified amount of \$11,366.00

Background

This is a lemon law case. Plaintiff Ani Ghaltakhchyan alleges that on May 20, 2024, they entered into a lease agreement for vehicle manufactured by Defendant General Motors, LLC. Plaintiff alleges that the vehicle exhibited numerous defects that could not be cured after a reasonable number of repair attempts.

On April 2, 2025, Plaintiff brought suit against Defendants General Motors, LLC, and dealership Casa de Cadillac, alleging fraud, violations of the Song-Beverly Act, violations of the Magnusson Moss Warranty Act, violation of BPC § 17200 and 17500, negligence, and strict liability.

On November 19, 2025, the parties settled this case out of court.

On April 1, 2026, Plaintiff filed the instant motion for attorney fees. However, on June 24, 2026, Plaintiff requested a three-month continuance.

Now, the Court hears Plaintiff's motion for attorney fees.

Discussion

Plaintiff requests a total of \$64,252.50 in attorney fees and costs. (Mot. for Attorney Fees, pp. 5:12-19.) Specifically, Plaintiff requests \$42,585.00 in reasonable attorney fees across three different lawyers, \$21,292.50 as a 1.5x lodestar multiplier, \$375.00 in assistant fees, and \$4,163.50 in costs. (Ibid.)

Plaintiff bases their request for fees on the fee-shifting provision of the Song-Beverly Act, which states that a prevailing buyer can, "recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution." (Civ. Code § 1794(d).) Plaintiff also asserts that the settlement agreement between the parties gives them the right to recover fees and costs by motion. (Mot. for Attorney Fees, p. 7:3-7.) Thus, the Court will proceed and analyze this motion on the merits.

i) Fee Motion Analysis

"[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate . . . The reasonable hourly rate is that prevailing in the community for similar work. The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided." (PLCM Group, Inc. v. Drexler (2000) 22 Cal.4th 1084, 1095 [internal citations omitted]); (see Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 818 [applying the lodestar method to determine attorneys' fees in Song-Beverly action].) Thus, the Court will analyze the reasonableness of: i) Plaintiff's lodestar multiplier request, ii) Plaintiff's hourly rates, iii) Plaintiff's hours, and iv) Plaintiff's costs.

A. Lodestar Multiplier

First, the Court will analyze Plaintiff's request for a 1.5x lodestar multiplier (\$21,292.50). While the baseline lodestar reflects the basic fee for comparable legal services in the community, it may be adjusted based on various factors, including "(1) the

novelty and difficulty of the questions involved, and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; (3) the contingent nature of the fee award[;]" and (4) the success achieved. (*Serrano v. Priest* (1977) 20 Cal.3d 25, 49.) "[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable." (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138-1139.)

The Court finds that the facts of this case don't support the application of a multiplier. There is no indication that this lemon law case was complex or presented any challenging legal issues, particularly considering that Plaintiff's counsel specializes in these types of cases. Additionally, there is no evidence that Plaintiff's counsel was precluded from taking other cases because of the nature of this case. Lemon Law firms take on these cases hundreds at a time, so the opportunity cost of taking on one more is negligible.

Nor is the success achieved by Plaintiff's counsel exceptional. This case was filed in April of 2025, and settled just seven months later, in November of 2025. No motions were filed in this case. The Court further notes that counsel's skill and experience is being factored into the reasonableness of their fees. Thus, it would be unreasonable to award an enhancement here. (See *Holguin v. Dish Network LLC* (2014) 229 Cal.App.4th 1310, 1333 ["Where, as here, the court determines that the lodestar itself constitutes a reasonable fee for the action at issue, no enhancement is warranted."].)

For these reasons, the Court declines to grant this multiplier.

B. Plaintiff's Hourly Rates

Second, the Court will evaluate the reasonableness of Plaintiff's hourly rates. Plaintiff bills for the time of three lawyers, and one assistant – Hovanes Margarian, at a rate of \$650 and \$750 an hour, Shushanik Margarian at \$550 and \$670 an hour, Patrick Kimbal at \$700 an hour, and Elmira Oganyan at \$150 an hour. (Margarian Decl. Ex. A, p. 16.)

"[T]he court's discretion in awarding attorney fees is ... to be exercised so as to fully compensate counsel for the prevailing party for services reasonably provided to his or her client." (*Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 395 [emphasis added].) The trial court may reduce the award where the fee request appears unreasonably inflated, such as where the attorneys' efforts are unorganized or duplicative. (*Serrano v. Unruh* (1982) 32 Cal.3d 621, 635, fn. 21.) Moreover, courts have repeatedly stated that the trial court is in the best position to value the services rendered by the attorneys in his or her courtroom, and this includes the determination of the hourly rate that will be used in the lodestar calculus. (*East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 436-437.)

Here, the Court has determined that Plaintiff's requested rates are too high. The Court does not believe that high-volume, boilerplate lemon law cases like this one justify rates as high as \$600 to \$700 an hour. The Court has seen enough suits brought under Song-Beverly to know that every paper filed in these cases, from the Complaint, to the discovery requests, to the Demurrer oppositions are copied and pasted from templates, with minimal personalization to each client. What's more, the issues presented in this case were not novel or complex. Thus, there was no special skill or insight required to litigate this case. Moreover, no motions were filed in this entire case. Thus, there was no special skill or insight required to litigate this case.

For similar reasons, the Court also takes issue with Plaintiff charging significantly higher hourly rates for some of their more experienced lawyers. The logic for why a more senior lawyer can charge higher rates is that they will bring more knowledge to the table, work more efficiently, and produce better outcomes for their clients. That logic does not hold in this context. There was no motion practice in this case. Additionally, this case also did not involve any complex issues of law. Whatever documents that were filed were based on templates and needed next to no specific factual personalization. Thus, charging significantly higher rates is not reasonable, as this work could have been done by a much less experienced attorney. (See *Mikhaelipoor v. BMW of North America* (2020) 48 Cal.App.5th 240, 256 [Court of Appeals held that it was not an abuse of discretion for the trial court to reduce the hourly rates of every lawyer in a lemon lawsuit to \$350.00].)

For these reasons, the Court reduces the hourly rates of Plaintiff's attorneys Hovanes Margarian, Shushanik Margarian, and Patrick Kimbal to \$350 an hour.

C. Plaintiff's Hours Billed

Next, the Court will assess the reasonableness of Plaintiff's hours billed.

The Song-Beverly Act, "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount." (*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470 [quoting *Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104].)

Moreover, "[w]hen a 'voluminous fee application' is made, the court may ... 'make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure.'" (*Kerkeles v. City of San Jose* (2015) 243 Cal.App.4th 88, 102.) Moreover, "trial courts need not, and indeed should not, become green-eyeshade accountants. The essential goal in shifting fees (to either party) is to do rough justice, not to achieve auditing perfection. So trial courts may take into account their overall sense of a suit, and may use estimates in calculating and allocating an attorney's time." (*Fox v. Vice* (2011) 563 U.S. 826, 838.)

Here, Plaintiff bills for an impressive 66.2 hours of time across three lawyers in a case with no substantive motion practice. (Margarian Decl. Ex. A, p. 16.) As explained, the Court's overall sense of this suit is that it is a typical lemon law case that involved no serious motion practice beyond a single minor discovery dispute. Moreover, Plaintiff submits 16 pages of billing records. (*Ibid.*) By spreading this billing across so many lawyers and entries, Plaintiff makes it difficult for the Court to evaluate the reasonableness of each individual entry. Thus, Plaintiff's billings are voluminous and are therefore subject to across-the-board cuts in hours. For these reasons, the Court will reduce Plaintiff's requested attorney hours from 66.2 to 22.

By contrast, Plaintiff's billing for assistant administrative work spans only three total entries. (Margarian Decl. Ex. A pp. 4, 11.) Moreover, these billings are focused entirely on standard proofreading tasks. (*Ibid.*) Having reviewed these hours the Court takes no issues with these 2.5 hours.

D. Plaintiff's Costs

Finally, the Court will evaluate Plaintiff's request for \$4,163.50 in costs. (See Memorandum of Costs.) Under CIV § 1794(d), when a buyer prevails in a Song-Beverly action, "the buyer shall be allowed . . . to recover . . . the aggregate amount of costs and expenses . . . determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (CIV § 1794(d) [emphasis added].) Thus, Plaintiff is entitled to recover any costs they reasonably incurred as part of this litigation.

Defendant argues that \$3,530.15 of these costs should be denied. (Opp. p. 13:23-27.) Specifically, Defendant asks the Court to strike the following costs:

1) Filing, E-Filing, and Service Fees

First, Defendant requests this Court strike multiple cost requests related to filing, e-filing, and service of process costs. (Opp. p. 14.) Defendant argues these costs were excessive and unnecessary. (Ibid.) The Court disagrees. Administrative filing fees and service fees are required of every litigant in a case. Thus, these are standard fees that should be expected of litigation and are therefore reasonably incurred. Additionally, the Court notes that filing and service costs are allowable under CCP § 1033.5(a). While this statute is not the relevant authority in this Song-Beverly case, it still provides persuasive authority for the position that California courts believe that filing and service fees are a reasonably incurred cost.

Thus, the Court finds these costs reasonably incurred.

2) Jury Fees

Next, Defendant objects to Plaintiffs' request for \$150 in jury fee costs. (Opp. p. 14:4-8.) Moving Defendant argues that because no jury was called in this matter, this cost was not reasonably incurred. (Ibid.) Moving Defendant cites to Perko's Enterprises Inc. v. RRNS Enterprises in support of this argument. (Ibid.)

The Court disagrees. To begin, Defendant misstates the law. Perko's in no way holds that jury fees are recoverable only when a trial actually occurs. In fact, the only mention of "jury fees" in Perko's is in a footnote that quotes the following language from CCP § 1033.5(a): "[t]he following items are allowable as costs under Section 1032: "(1) Filing, motion, and jury fees." (Perko's Enterprises Inc. v. RRNS Enterprises (1992) 4 Cal.App.4th 238, fn. 5.) Thus, Defendant's misleading citation holds no weight here. Additionally, under CCP § 631, jury fees must be paid by the first case management conference in the action. (CCP § 631.) Thus, if Plaintiff wished to be entitled to a jury trial, they had to pay this fee early in the case's lifespan. Therefore, the fee was reasonably necessary for the litigation of the case.

For these reasons, the Court finds these costs were reasonably incurred.

3) "Other" Request for Mediation and Appearance Attorney Fees

Next, Defendant requests the Court reduce Plaintiff's request for \$1,372.50, for costs related to mediation and appearance attorney fees. (Opp. p. 14:18-22.) Defendant argues that Plaintiff failed to provide evidentiary support to justify and differentiate this joint request. (Ibid.) In Reply, Plaintiff provides the declaration of Hovanes Margarian, who explains that this request for \$1,372.50 includes an error. (Margarian Decl. ¶ 15.) Plaintiff meant to request \$972.50 total - \$400 of which was for mediation costs, and \$572.50 of which was incurred hiring appearance attorneys. (Ibid.) Plaintiff provides receipts for both of these costs in their Reply declaration. (Id. Ex. B.)

As to the \$572.50 in appearance attorney fees, the Court concludes that these costs were not reasonably necessary to litigating this case. In general, a lawyer may hire an appearance attorney to cover for a case appearance they may not be able to attend. However, in this Court's experience, appearance attorneys are used at nearly every hearing by lemon law litigants. Offloading this appearance role to professional appearance attorneys allows firms to file an ever-increasing number of cases. In the Court's experience, these appearance attorneys typically slow down the litigation process, as they are rarely, if ever, prepared or knowledgeable about the case they are appearing for. Thus, the value of an appearance attorney appears to be the convenience they provide to the Plaintiff's firm, rather than the case itself. Thus, the Court does not find these costs were reasonably incurred.

However, as to the \$400 for the online mediator, the Court finds this cost reasonable. While mediation costs are not specifically enumerated as recoverable costs under CCP § 1033.5(a), this Court believes that informal attempts to resolve claims are crucial to the litigation process. This case itself was resolved out of court! Thus, the actions of both parties suggest that this was a reasonably incurred cost.

For these reasons, the Court will strike this request for \$1,372.50 down to \$400.

4) Deposition Costs

Finally, Defendant moves to strike \$1,902.75 related to depositions costs. (Opp. p. 14:9-12.) Defendant argues that these costs are improper, as Plaintiff has failed to provide any documentation supporting the requested amount. (Ibid.)

The Court disagrees. Plaintiff's invoice justifying these costs is literally attached to Plaintiff's memorandum of costs. (Memorandum of Costs, Attachment 4(e).)

For this reason, the Court declines to strike these costs.

5) Summary

In summary, the Court will reduce Plaintiff's request for \$4,163.50 in requested costs by \$872.50, for a new total of \$3,291.00.

E. Summary

In summary, the Court declines to apply a 1.5 lodestar multiplier to this case. Additionally, the Court reduces the hourly rate of Plaintiff's attorney to \$350. Next, the Court reduces the total attorney hours billed by Plaintiff from 66.2 to 22. However, the Court does not reduce the hours of Plaintiff's assistant administrative billing. Based on Plaintiff's adjusted hours and hourly rates, the Court recalculates Plaintiff's reasonable attorney fees at \$8,075.00. Finally, the Court will reduce Plaintiff's request for \$4,163.50 in costs to \$3,291.00.

In total, this brings Plaintiff's total incurred reasonable attorney fees and costs to \$11,366.00.

Conclusion

The Court GRANTS Plaintiff's Motion for Attorney Fees, in the modified amount of \$11,366.00.

IT IS SO ORDERED, Plaintiff TO GIVE NOTICE.

September 24, 2026

Judge of the Superior Court